

Michigan

GENERAL INFORMATION

1. Michigan **does not** maintain a list of eligible surplus lines insurers. However, eligible surplus lines insurers can be found on its website via an entity search tool (See Other Comments section #1).
2. Michigan **does not** have a Surplus Lines Association or Stamping Office.
3. Michigan **does** have an Export List available at http://www.michigan.gov/documents/lara/quarterly_surplus_lines_list_4252011_351537_7.pdf.
4. Michigan **does** have an industrial insured exemption applicable to captive insurers only (see Appendix C) and also recognizes the NRRA exempt commercial purchaser exemption as of 7/21/2011.
5. Surplus lines tax: 2.0% (plus 0.5% regulatory fee on premiums written in the state).
6. Michigan **does not** allow the formation of domestic surplus lines insurers in the state.

ELIGIBILITY AND FILING REQUIREMENTS (ALIEN INSURERS ONLY)

1. **Application:** including general information on applicant.
2. **Verification that company has been placed on the Quarterly Listing of Alien Insurers maintained by the NAIC.**
3. **Listing of lines to be written in Michigan.**
4. **\$500 fee** (no annual renewal filings).

ELIGIBILITY AND FILING REQUIREMENTS (FOREIGN INSURERS ONLY)

1. **Application:** including general information on applicant.
2. **Listing of lines to be written in Michigan and verification of authority to write these lines in company's state of domicile.**
3. **Certification of capital and surplus requirements of \$15,000,000.**
4. **\$500 fee** (no annual renewal filings).

The application and instructions can be found at

http://www.michigan.gov/documents/lara/FIS_2260_361190_7.pdf.

TYPES OF INSURANCE EXEMPTED FROM SURPLUS LINES REGULATION

None.

OTHER COMMENTS OR REQUIREMENTS

1. Eligible surplus lines insurers in Michigan can be found via an entity search tool at:
<https://difs.state.mi.us/locators?searchtype=InsCompany&entitytype=SL>.
2. Michigan requires licensees, risk retention groups, and purchasing groups to electronically file surplus lines taxes through the NAIC OPTins website at <https://www.optins.org/>. Michigan surplus lines agent may place coverage with an insurer which is neither authorized nor recognized for surplus lines if it files the appropriate affidavit and attempts to place the insurance with an authorized or recognized insurer first.
3. Marine, inland navigation, and transportation insurance constitute transactions of insurance for which a certificate of authority is not required in Michigan. Such transactions must still be written by eligible surplus lines insurers although the Michigan DOI does not require the surplus lines broker to obtain declinations from admitted carriers.
4. Each policy, cover note, or other instrument evidencing surplus lines insurance which is to be delivered to an insured or a representative of an insured must have printed, typed, or stamped in red ink upon its face, in not less than 10-point type, the following notice: **“This insurance has been placed with an insurer that is not licensed by the state of Michigan. In case of insolvency, payment of claims may not be guaranteed.”**

This notice must not be covered over or concealed in any manner.

Contact Our Insurance + Reinsurance Team

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